Summary: How is the term “armed conflict” defined in international humanitarian law?

Based on the ICRC Opinion Paper (April 2024), which updates its 2008 paper of the same name

In one paragraph. IHL applies to *armed conflicts* – a factual state of hostilities that does not depend on a declaration of war or on recognition by the parties. The Geneva Conventions deliberately leave “armed conflict” undefined so the concept stays objective and adaptable. An **international armed conflict (IAC)** exists whenever a state resorts to armed force against another state, with no minimum intensity. A **non-international armed conflict (NIAC)** exists when there is armed violence between a state and an organized armed group (or between such groups) that meets two cumulative conditions: the non-state party is sufficiently **organized**, and the violence is sufficiently **intense**. Both the start and the end of a conflict are judged on the facts on the ground.

1. Introduction

The notion of armed conflict

Common Articles 2 and 3 of the Geneva Conventions distinguish IACs from NIACs, but neither defines “armed conflict”. This was intentional: earlier reliance on formal “declarations of war” let states deny they were at war by calling hostilities a police action or self-defence. Using a fact-based concept depoliticizes the application of IHL.

There is no central authority that classifies conflicts. Parties must determine the applicable law themselves, and the ICRC makes its own independent classification because (1) states have mandated it to promote understanding of IHL, (2) its role is to help parties comply with their obligations, and (3) its own rights – e.g. visiting prisoners of war in IACs, its right of initiative in NIACs – depend on the existence of a conflict. The ICRC usually informs the parties, third states and the public of its classification.

The 2024 paper responds to developments since 2008: coalitions of states supporting governments in NIACs, non-consensual use of force on foreign territory, shifting coalitions of armed groups, and the proliferation of such groups.

What classification does – and does not – mean

- **IHL is not limited to wartime.** Some obligations apply at all times (e.g. “respect and ensure respect”, bans on stockpiling mines, cluster munitions, biological and chemical weapons).
- **IHL does not stop when the conflict ends.** Protections for POWs and civilian internees continue until release/repatriation; some rules (amnesties under AP II Art. 6(5), clearance of explosive remnants) apply only after hostilities.
- **Classification is separate from legality.** Whether force was lawful under the UN Charter (*jus ad bellum*) has no bearing on whether IHL applies (*jus in bello*). IHL protects victims regardless of who started the fighting or why.
- **Motive and legitimacy are irrelevant.** A party’s political aims, or its view that the enemy is illegitimate, do not affect classification; and classification does not change the legal status of the parties.

2. International armed conflicts (IAC)

Beginning of an IAC

An IAC exists whenever two or more states (or other entities with international legal personality, such as international organizations) are opposed by armed force. Following the ICTY’s *Tadic* decision (1995), an IAC is “a resort to armed force between states” – a definition now regarded as customary law.

- **No intensity threshold:** even minor skirmishes between armed forces trigger an IAC; duration and number of casualties do not matter.
- **Unilateral force is enough:** "between" means a belligerent relationship, not necessarily reciprocal fighting – an attack on a state's territory, population or infrastructure suffices.
- **It must be a hostile act attributable to a state:** mistakes, accidental friendly fire, ultra vires acts and acts of private persons do not count. Selling or donating weapons is not enough.
- **Open questions:** cyber operations with physical effects comparable to kinetic attacks would trigger an IAC; whether purely disruptive cyber operations do is unsettled. Not every use of force at sea (e.g. coast-guard fisheries enforcement) is an IAC.

Wars of national liberation

The only IAC not between states: under Article 1(4) of Additional Protocol I, conflicts in which peoples fight colonial domination, alien occupation or racist regimes in exercise of self-determination – provided the authority representing the people makes a unilateral declaration under AP I Art. 96(3).

End of an IAC

Also judged on facts: peace treaties and ceasefires are not decisive. The test is the **general close of military operations** – not just the end of active hostilities, but of military movements of a bellicose nature, with enough stability and permanence that a resumption of hostilities can reasonably be ruled out.

Occupation

Based on Article 42 of the 1907 Hague Regulations (territory "actually placed under the authority of the hostile army"), interpreted through the cumulative **effective control test**:

- foreign armed forces are physically present on the territory without the consent of the effective local government;
- that government has been, or can be, rendered substantially or completely unable to exercise its powers because of that presence;
- the foreign forces are in a position to exercise authority over the territory in place of the local government.

Since all three are necessary conditions, the occupation ends when any one ceases to exist (with a narrow exception where a withdrawing power keeps key governmental functions).

Selected classification issues

- **Consent:** force used on another state's territory without its consent is an IAC – even if the attacker says it is targeting only an armed group, not the state. With valid consent (and within its limits) there is no IAC.
- **IAC by proxy:** if a state exercises *overall control* over an armed group fighting another state (i.e. equipping and financing it *and* coordinating or helping plan its military activity), the conflict is an IAC between the two states. The same logic applies to occupation through proxy local authorities.
- **Multinational forces:** who the parties are depends on who holds command and control over operations – the international organization, the troop-contributing countries, or both.

3. Non-international armed conflicts (NIAC)

Common Article 3 is the "minimum yardstick" binding in all NIACs, supplemented by customary IHL and, in some cases, Additional Protocol II. Apart from wars of national liberation, any armed conflict in which at least one party is not a state is a NIAC. Per *Tadic*, a NIAC exists where there is "protracted armed violence between governmental authorities and organized armed groups or between such groups within a State".

Two conditions are required – and no others (motive is irrelevant):

Organization of the non-state party	Intensity of the violence
• command structure and disciplinary rules • headquarters • control of territory • access to weapons, equipment, recruits, training • unified military strategy and tactics • ability to plan and carry out operations and logistics • ability to speak with one voice and negotiate (ceasefires, peace accords)	• number, duration and intensity of confrontations • types of weapons and equipment used • number and calibre of munitions fired • number of persons and types of forces involved • casualties (killed, wounded, displaced, missing) • extent of material destruction • number of civilians fleeing • involvement of the UN Security Council

- Indicators are assessed case by case; none is mandatory or decisive on its own.
- Because data is often scarce ("fog of war"), evidence of one criterion can inform the other – e.g. sustained, intense fighting suggests a group can organize operations – but both remain separate necessary conditions.
- Unilateral violence counts toward intensity, provided the opposing side is organized.
- There is no minimum duration, but since most indicators accumulate over time, a single use of force will very rarely meet the threshold.

When Additional Protocol II applies

AP II covers a narrower subset of NIACs. Five conditions must be met: (1) a NIAC exists; (2) it takes place on the territory of a state party to AP II; (3) it is between that state's armed forces and dissident forces or other organized armed groups; (4) the non-state party is under **responsible command**; and (5) it controls enough territory to carry out sustained and concerted military operations and to implement the Protocol. The amount of territorial control is context-dependent, but the territory must escape government control.

NIACs involving coalitions

- **Support-based approach:** a state, armed group or international organization supporting a party in a *pre-existing* NIAC becomes a party itself – even without fighting intensely on its own – when (1) there is a pre-existing NIAC where it intervenes, (2) it undertakes actions related to the conduct of hostilities in that conflict, and (3) its operations objectively support a party, notably by pooling military resources with it. The support must directly affect the enemy's ability to conduct operations (e.g. logistics, intelligence, planning); merely building up a party's capabilities is not enough. For international organizations, an official decision to support is also required.
- **Incorporation:** armed groups incorporated into, or acting under command responsible to, a state count as part of its (regular or irregular) forces; groups under the command and control of a "parent" armed group are part of that party.
- **Aggregating intensity:** where no NIAC yet exists, the violence of several sufficiently coordinated armed groups against a common opponent may be added together to reach the intensity threshold. A shared ideology or common enemy is not enough; signs include a coordination structure, shared tasks, common procedures or rules of engagement, simultaneous attacks and joint operations.

Geographical scope

- **Spillover NIAC:** IHL follows the hostilities into the neighbouring state, but only to the parts of its territory where fighting has extended.
- **Extraterritorial NIAC** (foreign forces fighting armed groups in a host state): IHL applies at least throughout the host state; whether it also applies in the sending state is unsettled, though there are strong arguments it does, alongside human rights law (normally the *lex specialis* there).

- **No “global” NIAC:** the ICRC rejects the idea of a worldwide conflict against a non-state group. In the context of “global terrorism”, it classifies situations individually as NIACs, IACs or not armed conflicts at all.

End of a NIAC

Temporary drops below the intensity threshold do not end a NIAC. Following *Tadic*, IHL applies until a “peaceful settlement” is reached – understood factually, not as a formal peace agreement. This occurs when either:

- **one party ceases to exist** (complete military defeat, demobilization of the armed group, or dissolution of the state party); or
- **there is a lasting cessation of armed confrontations without real risk of resumption.** Indicators: effective implementation of a peace agreement or ceasefire; credible declarations renouncing violence; dismantling of special government units; disarmament, demobilization and reintegration programmes; a growing period without hostilities; lifting of a state of emergency.

Annex: Sample memorandum on IHL rules in an IAC

The paper closes with an illustrative example of the reminder of the law the ICRC sends to parties. Its main points:

- **Protected persons:** the wounded, sick, shipwrecked, POWs and civilians must be respected and protected without discrimination; each party sets up a National Information Bureau; captured combatants get POW status (presumed in case of doubt until a tribunal decides); the ICRC may visit POWs and civilian internees; torture and ill-treatment are prohibited; special protection for women and children; no transfer of persons at risk of serious abuse.
- **Conduct of hostilities:** distinction, proportionality and precautions; no terror attacks, indiscriminate attacks, human shields, starvation, perfidy, “no quarter” orders or reprisals against civilians; protection of cultural property, dangerous installations and the environment; bans on poison, biological and chemical weapons, expanding/exploding bullets, blinding lasers and others (plus nuclear weapons, mines and cluster munitions for treaty parties).
- **Occupation:** the occupier must maintain public order, treat people humanely, ensure food and health care, accept relief schemes, and not deport the population or transfer its own civilians into the territory; collective punishment is prohibited.
- **Missing and dead:** account for the missing, inform families, search for, identify and respectfully bury the dead, and register graves.
- **Medical activities, emblems and relief:** medical personnel and units are protected; misuse of the Red Cross/Red Crescent emblem is prohibited; impartial humanitarian relief must be allowed and facilitated.
- **Respect for IHL:** parties must respect and ensure respect for IHL (independently of reciprocity), train their forces and provide legal advisers; the ICRC asks for access to all affected persons.

Key takeaways. (1) Classification is purely factual – declarations, legitimacy, motives and the legality of the use of force are irrelevant. (2) IAC: any hostile use of force between states, no intensity threshold. (3) NIAC: organized non-state party + sufficiently intense violence. (4) The end of a conflict also requires a stable, factual close of hostilities. (5) The 2024 paper adds tools for modern conflicts: the support-based approach, aggregation of intensity across coalitions, and rules on the geographic reach of NIACs.